

KMVTECH EDUCATION**CEL1 · Module 4****Institutions**

Lesson: Who regulates

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Key institutions include the National Environment Management Authority (NEMA), line ministries (Water and Environment, Tourism/Wildlife, Energy, Agriculture), specialised agencies (wildlife, forestry, water), local governments and the courts.

NEMA coordinates, sets standards, oversees EIA, issues certain approvals and enforces. Sectoral agencies manage specific resources. Local governments handle decentralised functions and bye-laws.

Coordination failures, overlapping mandates and capacity constraints are recurring challenges. Public participation and access to information statutes reinforce institutional accountability.

- Effective environmental governance is multi-level and multi-actor; no single agency owns the whole system.

2. DETAILED RULES AND APPLICATION

Example: a mining project may require NEMA EIA approval, sectoral mining licences, water permits and local-government clearances — sequencing and coordination are critical.

Map every agency that holds a statutory power over the activity; check which approval is a legal precondition for the next.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's institutional design is comprehensive on paper; practical effectiveness depends on funding, expertise, political support and judicial oversight. Strategic litigation often targets institutional non-performance.

Exam trap: treating NEMA as the only relevant body, or assuming a permit from one agency cures defects in another's process.

Method: list the activity's environmental interfaces → identify each competent authority and its statutory power → check sequencing and inter-agency consultation duties → note appeal and judicial-review routes.

Institutional literacy prevents both unlawful projects and unenforceable objections.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What is NEMA's core coordinating role?
2. Name three other categories of environmental institution.
3. Why does multi-level governance matter?
4. What risks arise from overlapping mandates?
5. How can courts supervise institutions?
6. What should a project proponent map first?

Exam tip: Map every competent authority and the approval sequence.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.